

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF ABAKUMOV AND OTHERS v. RUSSIA

(Applications nos. 50116/18 and 37 others –
see appended list)

JUDGMENT

STRASBOURG

30 November 2023

This judgment is final but it may be subject to editorial revision.



In the case of Abakumov and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Péter Paczolay*, President*,
Gilberto Felici,
Raffaele Sabato*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 9 November 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further complaints under the Convention. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints;

4. *Holds* that there has been a breach of Article 11 of the Convention in respect of all the applicants;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a

rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 30 November 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Péter Paczolay President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	50116/18 10/10/2018	**Vyacheslav Valeryevich ABAKUMOV** 1986	Zhdanov Ivan Yuryevich Vilnius	Opposition rally Voronezh 05/05/2018	Article 20.2 § 5 of CAO Article 19.3 § 1 of CAO	fine of RUB 10,000 5 days of detention	Voronezh Regional Court 14/06/2018 Voronezh Regional Court 14/06/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings	5,000
2.	50124/18 10/10/2018	**Sergey Igorevich SENTSOV** 1998	Zhdanov Ivan Yuryevich Vilnius	Opposition rally Voronezh 05/05/2018	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	5 days of detention fine of RUB 10,000	Voronezh Regional Court 15/06/2018 Voronezh Regional Court 26/06/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings	5,000
3.	50245/18 10/10/2018	**Aleksey Andreyevich FILONOV** 2000	Zhdanov Ivan Yuryevich Vilnius	Opposition rally Voronezh 05/05/2018	Article 19.3 § 1 of CAO	5 days of detention	Voronezh Regional Court 15/06/2018	Art. 5 (1) - unlawful detention - on 05-06/05/2018 detention in a police station for and after compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
4.	52385/18 27/10/2018	**Aleksandr Vasilyevich TONKO** 1958	Yatsenko Irina Aleksandrovna Moscow	Rally of mortgage loaners Moscow 28/11/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 26/04/2018 (received no earlier than 27/04/2018)	Art. 5 (1) - unlawful detention - on 28/11/2017 escorting to a police station for compiling an offence report Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
5.	53206/18 05/11/2018	**Vyacheslav Mikhaylovich KALMYKOV** 1991	Terekhov Konstantin Ilyich Moscow	Rally to support A. Navalnyy Astrakhan 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Astrakhan Regional Court 11/05/2018		3,500
6.	53428/18 31/10/2018	**Petr Petrovich PETROV** 1957	Pershakova Yelena Yuryevna Moscow	Rally to support A. Navalnyy Perm 07/10/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Perm Regional Court 06/06/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
7.	53807/18 01/11/2018	**Yegor Fedorovich YEREMEYEV** 1988	Sergeyeva Irina Vadimovna Moscow	Assembly to support Telegram Moscow 16/04/2018	Article 20.2.2 § 1 of CAO	fine of RUB 10,000	Moscow City Court 30/05/2018	Art. 5 (1) - unlawful detention - on 16-17/04/2018 escorting to and detention in a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
8.	53905/18 27/10/2018	**Vladimir Vasilyevich GONTAR** 1971	Yatsenko Irina Aleksandrovna Moscow	Rally of mortgage loaners Moscow 28/11/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 26/04/2018 (received no earlier than 27/04/2018)	Art. 5 (1) - unlawful detention - on 28/11/2017 escorting to a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
9.	54895/18 31/10/2018	**Kirill Andreyevich KLYUSOV** 1999	Cherkasov Vitaliy Viktorovich St Petersburg	Opposition rally St Petersburg 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 14/06/2018	Art. 5 (1) - unlawful detention - on 05-06/05/2018 escorting to and detention in a police station for and after compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
10.	55664/18 13/11/2018	**Lyudmila Aleksandrovna SUKOVA** 1987	Sergeyeva Irina Vadimovna Moscow	Assembly to support Telegram Moscow 16/04/2018	Article 20.2.2 § 1 of CAO	fine of RUB 10,000	Moscow City Court 30/05/2018	Art. 5 (1) - unlawful detention - on 16-17/04/2018 escorting to and detention in a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
11.	56196/18 16/11/2018	**Sofya Dmitriyevna TROFIMOVA** 1999	Sergeyeva Irina Vadimovna Moscow	Assembly to support Telegram Moscow 16/04/2018	Article 20.2.2 § 1 of CAO	fine of RUB 10,000	Moscow City Court 30/05/2018	Art. 5 (1) - unlawful detention - on 16-17/04/2018 escorting to and detention in a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
12.	7615/19 21/01/2019	**Vyacheslav Borisovich STEBLIN** 1968	Zhdanov Ivan Yuryevich Vilnius	Opposition rally Moscow 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 06/08/2018	Art. 5 (1) - unlawful detention - on 12-13/06/2019 escorting to and detention in a police station for and after compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in three sets of administrative-offence proceedings	6,000

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				Rally to support I. Golunov Moscow 12/06/2019	Article 19.3 § 1 of CAO Article 20.2 § 8 of CAO	fine of RUB 1,000 fine of RUB 150,000	Moscow City Court 22/10/2018 Moscow City Court 12/11/2019		
13.	17438/19 18/03/2019	**Vyacheslav Vladimirovich VERESHCHAGIN** 1972	Olenichev Maksim Vladimirovich St Petersburg	LGBT-rights rally St Petersburg 04/08/2018	Article 20.2 § 8 of CAO	fine of RUB 150,000	St Petersburg City Court 25/09/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,400
14.	20139/19 02/04/2019	**Svetlana Nikolayevna VOLKOVA** 1982	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally against the pension reform Yekaterinburg 09/09/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 22/11/2018	Art. 5 (1) - unlawful detention - on 09/09/2018 escorting to a police station for compiling an offence report	4,000
15.	20144/19 02/04/2019	**Aleksey Andreyevich BARINOV** 1988	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally against the pension reform Yekaterinburg 09/09/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 22/01/2019	Art. 5 (1) - unlawful detention - on 09/09/2018 escorting to a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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16.	21001/19 02/04/2019	**Kirill Sergeyevich BADULIN** 1996	Pomazuyev Aleksandr Yevgenyevich Vilnius	Opposition rally Moscow 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 30/11/2018	Art. 5 (1) - unlawful detention - on 05/05/2018 escorting to a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
17.	29446/19 17/05/2019	**Nikolay Anatolyevich DUBININ** 1989	Yelanchik Oleg Aleksandrovich Moscow	Rally against the pension reform Moscow 10/09/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 20/11/2018	Art. 5 (1) - unlawful detention - on 10/09/2018 escorting to a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
18.	29896/19 27/05/2019	**Yekaterina Igorevna MAKSIMOVA** 1988	Sozonov Ruslan Vladimirovich Nizhniy Novgorod	Rally against the pension reform Nizhniy Novgorod 09/09/2018	Article 20.2 § 6.1 of CAO	fine of RUB 11,000	Nizhniy Novgorod Regional Court 28/11/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
19.	34163/19 05/06/2019	**Ilyana Aleksandrovna SOLOVYEVA** 1978		Animal-rights protest Voronezh 03/11/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Voronezh Regional Court 06/12/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
20.	34938/19 17/06/2019	**Vadim Dmitriyevich SUKHONENKO** 1996	Chernyavskaya Andzhelika Viktorovna Oktyabrskiy	Rally against the pension reform Novosibirsk 09/09/2018	Article 20.2 § 5 of CAO	fine of RUB 5,000	Novosibirsk Regional Court 18/12/2018		3,500

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21.	35380/19 17/06/2019	**Veronika Nikolayevna RAZUMOVA** 1989	Chernyavskaya Andzhelika Viktorovna Oktyabrskiy	Rally against the pension reform Novosibirsk 09/09/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Novosibirsk Regional Court 18/12/2018		3,500
22.	35915/19 14/06/2019	**Vladislav Yuryevich KRASAVIN** 2000	Yatsenko Irina Aleksandrovna Moscow	Opposition rally Moscow 28/10/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 14/12/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
23.	38683/19 19/07/2019	**Dmitriy Yuryevich LVOV** 1992	Pomazuyev Aleksandr Yevgenyevich Vilnius	Opposition rally Moscow 05/05/2018	Article 20.2 § 5 of CAO Article 19.3 § 1 of CAO	fine of RUB 10,000 fine of RUB 1,000	Moscow City Court 18/02/2019 Moscow City Court 22/03/2019	Art. 5 (1) - unlawful detention - on 05-07/05/2018 detention in a police station for and after compiling the offence reports	4,000
24.	38921/19 10/07/2019	**Vea Iosifovna KERPEL** 1985	Sholokhov Igor Nikolayevich Kazan	Rally against the construction of a waste-disposal factory Kazan 17/08/2018	Article 20.2 § 2 of CAO	fine of RUB 20,000	Supreme Court of the Tatarstan Republic 15/05/2019	Art. 5 (1) - unlawful detention - on 28/03/2019 and 02/04/2019, escorting to a police station for recompiling an offence report in relation to the rally on 17/08/2018; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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25.	40293/19 17/07/2019	**Vladislav Alekseyevich KRASNOV** 1998		Rally against the pension reform Moscow 10/09/2018	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 18/01/2019	Art. 5 (1) - unlawful detention - on 10/09/2018 escorting to and detention in a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
26.	41207/19 16/07/2019	**Dmitriy Aleksandrovich KOROLEV** 1999		Opposition rally Moscow 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 16/01/2019	Art. 5 (1) - unlawful detention - on 05-06/05/2018 escorting to and detention in a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
27.	41971/19 24/07/2019	**Yevgeniy Valeryevich NAYMUSHIN** 1985	Yatsenko Irina Aleksandrovna Moscow	Opposition rally Moscow 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 24/01/2019	Art. 5 (1) - unlawful detention - on 05-06/05/2018 escorting to and detention in a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
28.	42083/19 16/07/2019	**Denis Mikhaylovich YEREMIN** 1987	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally against the pension reform Moscow 09/09/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 14/03/2019	Art. 5 (1) - unlawful detention - on 09/09/2018 escorting to and detention in a police station for compiling an offence report	4,000

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29.	43748/19 30/07/2019	**Grigoriy Andreyevich IVANOV** 1987	Koroleva Galina Vasilyevna Yekaterinburg	Rally against the pension reform Yekaterinburg 09/09/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 27/02/2019	Art. 5 (1) - unlawful detention - on 09-10/09/2018 escorting to and detention in a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
30.	13474/20 02/03/2020	**Aleksandr Andreyevich BAIKIN** 1990		Rally to support A. Navalnyy Yaroslavl 07/10/2017	Article 19.3 § 1 of CAO	case discontinued for lack of corpus delicti	Kirovskiy District Court of Yaroslavl 09/10/2017 (the applicant lodged a claim for compensation due to unlawful administrative proceedings, arrest and violation of his freedom of assembly – final judgment by the Russian Supreme Court on 18/09/2019)	Art. 5 (1) - unlawful detention - on 07-09/10/2017 and 31/01/2021 escorting to and detention in a police station for compiling offence reports; compensation case in relation to the proceedings in 2017 was dismissed (final decision on 18/09/2019 by Supreme Court);	5,000
				Rally to support A. Navalnyy Yaroslavl 31/01/2021	Article 20.2 § 5 of CAO	fine of RUB 10,000	Yaroslavl Regional Court 09/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings in the 2021 case	

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31.	39198/21 28/07/2021	**Sergey Sergeyevich SMIRNOV** 1988	Memorial Human Rights Centre Moscow	Rally to support A Navalnyy Moscow 31/01/2021	Article 20.2 § 6.1 of CAO	8 days of detention	Moscow City Court 18/02/2021	Art. 5 (1) - unlawful detention - on 31/01/2021-01/02/2021 escorting to and detention in a police station for and after compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - lack of suspensive effect of an appeal against the sentence of detention	5,000
32.	40550/21 30/07/2021	**Oleg Stanislavovich VODYANITSKIY** 1967	Zhdanov Ivan Yuryevich Vilnius	Rally to support A Navalnyy Kaliningrad 31/01/2021	Article 20.2 § 2 of CAO	5 days of detention	Kaliningrad Regional Court 04/02/2021	Art. 5 (1) - unlawful detention - on 30-31/01/2021 escorting to and detention in a police station for compiling an offence report	5,000
33.	43836/21 12/08/2021	**Amir Radikovich IBATULLIN** 1998	Shchukin Andrey Yevgenyevcich Nizhniy Tagil	Rally to support A. Navalnyy Yekaterinburg 31/01/2021	Article 20.2 § 5 of CAO	20 hours of community work	Sverdlovsk Regional Court 08/06/2021	Art. 5 (1) - unlawful detention - on 31/01/2021 escorting to a police station for compiling an offence report	4,000
34.	44736/21 18/08/2021	**Aleksandr Vladimirovich MATVEYEV** 1995	Shchukin Andrey Yevgenyevcich Nizhniy Tagil	Rally to support A. Navalnyy Yekaterinburg 21/04/2021	Article 20.2 § 5 of CAO	30 hours of community work	Sverdlovsk Regional Court 14/07/2021	Art. 5 (1) - unlawful detention - on 21/04/2021 escorting to a police station for compiling an offence report	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
35.	44737/21 18/08/2021	**Andrey Olegovich LIPATOV** 1992	Kachanov Roman Yevgenyevich Yekaterinburg	Rally to support A. Navalnyy Yekaterinburg 31/01/2021	Article 20.2 § 5 of CAO	30 hours of community work	Sverdlovsk Regional Court 01/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
36.	47103/21 15/09/2021	**Stepan Yevgenyevich SHIROBOKOV** 1999	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally to support A. Navalnyy Tomsk 23/01/2021	Article 20.2 § 5 of CAO	fine of RUB 15,000	Tomsk Regional Court 26/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
37.	48286/21 10/09/2021	**Nikolay Nikolayevich YUGIN** 1967	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally to support A. Navalnyy Tomsk 31/01/2021	Article 20.2 § 5 of CAO	fine of RUB 10,000	Tomsk Regional Court 19/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
38.	54253/21 20/10/2021	**Vladimir Pavlovich DRAGUN** 1986	Magomedova Luiza Magomedovna St Petersburg	Rally to support protesters in Belarus St Petersburg 24/01/2021	Article 20.2 § 8 of CAO	9 days of detention	St Petersburg City Court 27/04/2021	Art. 5 (1) - unlawful detention - on 23-24/03/2021 escorting to and detention in a police station for and after compiling an offence report in relation to the rally on 24/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings;	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - lack of suspensive effect of an appeal against the sentence of detention	

[1] Plus any tax that may be chargeable to the applicants.